

Agent Selection & Commission Negotiation Checklist — Western Australia

Choosing the right agent, and understanding what you're actually agreeing to.

Correct as at July 2026. General information only, not legal advice.

Section 1 — Shortlisting Agents

- ☐ [] **Interview at least 3 agents** and compare their recent comparable sales in your specific suburb.
- ☐ [] **Ask for a genuine appraisal, not just the highest number** — cross-check against real recent comparable sales.
- ☐ [] **Ask how they'll market the property** and get this in writing.
- ☐ [] **Check their recent track record for your specific property type.**
- ☐ [] **Ask directly about any referral relationships** with settlement agents, stylists, or other service providers, and whether they receive a fee for those recommendations.

Section 2 — Understanding the Agency Agreement

- ☐ [] **Understand this is a legally binding contract governed by the Real Estate and Business Agents Act 1978 (WA)** — read every clause, not just the commission rate.
- ☐ [] **Confirm the commission rate is negotiable** — it isn't fixed or regulated at a set percentage.
- ☐ [] **Clarify exclusive vs. open listing terms** and how long any exclusive period runs.
- ☐ [] **Check marketing cost responsibility** — confirm upfront whether costs are included in commission or charged separately, in writing.

Section 3 — Remember: No Cooling-Off Period Applies to Buyers of Your Property Either

- ☐ [] **Understand your buyer will be immediately bound once they sign** — WA has no cooling-off period, which affects negotiation dynamics. Buyers (and their conveyancers) tend to be especially diligent before signing, since they know there's no fallback grace period — a well-prepared contract and disclosure package from your side can help transactions proceed smoothly.
- ☐ [] **Discuss with your agent how this affects your marketing and negotiation strategy** — buyers may take longer to commit given the binding nature of signing, so realistic timeline expectations matter.

Section 4 — Choosing Your Method of Sale

- ☐ [] **Compare auction vs. private treaty for your specific property and market conditions.**
- ☐ [] **Understand neither method offers a cooling-off period for the buyer in WA** — this is a genuine point of difference from eastern states and worth discussing with your agent as part of your campaign strategy.

Section 5 — Before You Sign

- ☐ [] **Have a solicitor review the agency agreement** if you're at all uncertain.
- ☐ [] **Clarify the termination process** — what happens if you want to change agents partway through the listing period.
- ☐ [] **Confirm who's preparing your contract of sale** and any required disclosure documents, and organise this in parallel with appointing your agent.
- ☐ [] **Ask for references from recent vendors**, not just buyer testimonials.

Quick Reference — Key Points on WA Agent Agreements

ITEM	DETAIL
Commission rates	Not fixed/regulated — negotiable
Governing legislation	Real Estate and Business Agents Act 1978 (WA)
Cooling-off period	None — for either buyer, applying to your sale too
Contract review timing	Must happen before signature, given no cooling-off backstop

© HouseHQ. General information only, current as at the date shown — not legal advice. Have your specific agency agreement reviewed by a solicitor if you have any doubts before signing.